Item 3

Finance Department
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Grants Pass, OR 97526
www.josephinecounty.gov

February 27, 2026

TO: Board of County Commissioners
FR: Ruth Nelson, Finance Director
RE: Fee Changes and Timeline

This memo outlines which departments are requesting fee changes as well as the timeframe to change or establish new fees to be effective May 1, 2026.

To change fees for County services (except as set by State or Federal law), the following process is required per Order 2000-25 adopted March 13, 2000, and approved by the voters on May 16, 2000. In addition, ORS 203.115 only allows fees to be increased no more than once every six months.

The department requesting fee changes is:

Community Development - Planning

The timeline is as follows:

Tuesday, March 3, 2026	Packet of proposed fee requests to BCC for review
Wednesday, March 11, 2026	BCC adopts first Order setting a public hearing at WBS
Wednesday, March 18, 2026	First publication in newspaper and website
Wednesday, March 25, 2026	Second publication in newspaper and website
Wednesday, April 1, 2026	Public Hearing & Adopt Second Order on Fee Requests

Attached are the fee change requests and backup documentation. Please note that any delays in the timeline may result in fees not being effective until after May 1st. Please let me know if you have any questions after your review. I am happy to gather any additional information.

Summary of
Fee Changes

Department: Planning Division

Fee Description	Current Fee	Cost of Service	Proposed Fee	Current Revenue	Estimated New Revenue	Justification
Annual Compliance 30 day late fee	0	246.91	250	0	32,500	BCC Ordinance 2025-003; effective February 11, 2026
Annual Compliance 60 day late fee	0	493.82	500	0	54,500	BCC Ordinance 2025-003; effective February 11, 2026

According to OLLC License list, we currently have 367 licenses as indicated.
We have about 258 of those licensed to have participated ever in the annual compliance program through the years we have had it.
Out of those only about 128 of those Actively Participate Yearly and on time.

Using these numbers I find that given the new proposed late fees:

30 day = 258-128= 130 X $250 late fee = $32,500 est. income

60 day = 367-258= 109 X $500 late fee = $54,500 est. income

This is giving the 367 OLCC licensees the benefit of doubt; meaning they will ALL comply with our program under their current trend.

The cost of service was determined by using 2024 fee study/cost per hour.

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

ORDINANCE No. 2025-003

AN ORDINANCE AMENDING THE JOSEPHINE COUNTY CODE (ORDINANCE NO. 2018-004) BY AMENDING TEXT OF THE JOSEPHINE COUNTY CODE TITLE 19: RURAL LAND DEVELOPMENT CODE, TO UPDATE CODE SECTIONS AND CREATE CHAPTER 19.99B – MARIJUANA BUSINESSES.

WHEREAS, Title 19 of the Josephine County Code periodically requires updates to reflect changes in laws and administrative processes; and

WHEREAS, the following code updates reflect recent changes and are necessary for clarity and consistency with state law; and

WHEREAS, the Rural Planning Commission held a public hearing on June 23, 2025 recommending approval of the amendments herein; and

WHEREAS, the Board of Commissioners held public hearings on August 4, 2025 and August 25, 2025 approving the amendments herein and must implement amendments of the County's Comprehensive Plan by ordinance; now, therefore,

The Board of County Commissioners of Josephine County ordains as follows:

Section 1.00 TEXT AMENDMENTS - TITLE 19 RURAL LAND DEVELOPMENT CODE

Chapter 19.11, DEFINITIONS, of the Josephine County Code (JCC), is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

19.11.150 M definitions

* * *

"Marijuana" means the plant cannabis family Cannabaceae, any part of the plant cannabis family Cannabaceae, and the seeds of the plant cannabis family Cannabaceae which is used or produced for recreational or medical purposes, but does not include "industrial hemp," as defined in ORS ~~571.300~~571.269. Marijuana is a crop for purposes of "agriculture, farming, farm use."

"Marijuana Business" means a corporation or other entity that is engaged in the production, processing, wholesaling, retailing, research, and testing of marijuana, or has a monetary interest in the production, processing, wholesaling, retailing, research, and testing of marijuana. "Marijuana business" does not include the production of marijuana for personal use up to the limits provided for under Oregon law.

"Marijuana Business Applicant" means a marijuana corporation or other entity with requisite producer licensure required by the State of Oregon with a legally enforceable property interest in a marijuana business that is applying for an annual compliance certificate.

"~~Annual~~ Marijuana Compliance Certificate" means the document certified by Josephine County that a marijuana business within the County's jurisdiction conforms to the regulations set forth in

this chapter, and all other state and local laws, rules, and regulations related to marijuana businesses in the ~~s~~State of Oregon.

"Marijuana Compliance Period" means the annual period between OLCC and OHA renewal dates for marijuana producers, or the annual period between renewals for state licenses or approvals relative to the marijuana business.

"Marijuana Laboratory" means a laboratory certified and authorized by the state to sample or test marijuana items pursuant to ORS 475C.540 through 475C.586.

"Marijuana Processor" means the business that processes, compounds, or converts marijuana into cannabinoid products, cannabinoid concentrates, or cannabinoid extracts; but not a business who packages or labels such products.

"Marijuana Producer" means a business who is licensed by the State of Oregon for marijuana production. "Marijuana producer" does not include the production of marijuana for personal use up to the limits provided for under Oregon law.

"Marijuana Production" means the manufacture, planting, propagation, cultivation, growing, or harvesting of marijuana or the drying of marijuana leaves and flowers at a location registered under ORS 475C.792 where medical marijuana is produced for use by an Oregon Health Authority (OHA) registry identification cardholder, or produced by a marijuana producer issued a production license under ORS 475C.065 by the Oregon Liquor Control Commission (OLCC). "Marijuana Production" does not include the drying of marijuana by a marijuana processor, if the marijuana processor is not otherwise producing marijuana; or the cultivation and growing of an immature marijuana plant by a marijuana wholesaler or marijuana retailer if the marijuana wholesaler or marijuana retailer purchased or otherwise received the plant form a licensed marijuana producer.

* * *

"Marijuana Retailer" means a marijuana retailer licensed by the OLCC.

"Marijuana Wholesaler" means a marijuana wholesaler licensed by the OLCC.

* * *

19.11.160 N definitions

* * *

~~"Nonconforming Marijuana Production Site" means a marijuana production site lawfully established in accordance with the RLDC prior to the effective date of Ordinance 2018-005 and authorized by state law as of that effective date.~~

* * *

19.11.170 O definitions

* * *

"OHA" means the Oregon Health Authority.

"OLCC" means the Oregon Liquor Control Commission. [Ord. 2018-007 § 2.]

* * *

19.11.180 P definitions.

* * *

"Processor, Marijuana" shall have the definition as written in OAR 845-025-1015. The processing, compounding or conversion of marijuana into cannabinoid products, cannabinoid concentrates, or cannabinoid extracts. Processing does not include packaging or labeling.

"Producer, Marijuana" shall have the definition as written in OAR 845-025-1015. The manufacture, planting, cultivation, growing or harvesting of marijuana. "Producer" may also include the drying, packaging, and labeling of marijuana. "Producer" does not include the drying of marijuana by a marijuana processor, if the processor is not otherwise producing marijuana.

* * *

Chapter 19.61, RURAL RESIDENTIAL ZONES, of the Josephine County Code (JCC), is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

19.61.020 Permitted uses.

The following uses, with accessory uses, shall be permitted using ministerial review procedures (Chapter 19.22 JCC). All uses shall also meet the applicable development standards listed in JCC 19.61.060. In all cases, a development permit (Chapter 19.41 JCC) is required as final permit approval.

* * *

E. Except as provided by this section, marijuana business uses and structures in existence as of the effective date of this ordinance which are nonconforming as to use or development standards of this chapter shall be subject to the provisions of Chapter 19.13 JCC, Nonconforming Lots, Uses and structures. A marijuana business for which a license has been issued by OLCC, a marijuana compliance certificate has been issued, and a determination of nonconforming use has been issued as of the date of this ordinance shall be allowed to continue, subject to all applicable JCC standards. ~~Notwithstanding subsection (B) of this section, lawfully established marijuana production sites in rural residential zones that existed prior to the effective date of Ordinance 2018-005 and authorized by state law as of that effective date shall apply for a determination of a nonconforming use pursuant to JCC 19.13.060 within one year of the effective date of this chapter. The nonconforming marijuana production site shall be subject to the following:~~

~~1. The person regulated by the state of Oregon must have an interest in the lot or parcel where the marijuana production site is located.~~

~~2. With the exception of residents, guests, and employees who serve to guard a marijuana production site, nonconforming marijuana production site regular business hours shall be limited from 7:00 a.m. to 7:00 p.m. Security personnel must be permitted marijuana workers per the state of Oregon and comply with all laws governing the provision of security services.~~

~~3. Beginning on September 20th and ending on November 10th annually, nonconforming marijuana production site regular business hours shall be extended to 5:00 a.m. to 9:00 p.m. to accommodate harvest. These extended regular business hours shall be subject to the mechanically generated noise restrictions in subsection (C)(4) of this section.~~

~~4. Mechanically generated noise associated with a nonconforming marijuana production site shall not exceed 50 dB(A), measured at the property lines of the nonconforming marijuana production site, from 7:00 a.m. to 7:00 p.m.~~

19.61.060 Property development standards

All uses authorized by this chapter are subject to certain additional permit, process and property development standards that are contained elsewhere in this title. The following is a list of chapters that are or may be applicable:

* * *

B. Property Development Standards.

* * *

~~22. Marijuana production sites – As measured from the edge of the canopy of the marijuana plants in accordance with OAR 845-025-2040(1)(d), or as amended, all marijuana plants shall be a minimum of 150 feet from the appurtenances of all dwellings on contiguous lots or parcels.~~[Ord. 2018-005 § 1; Amended by Planning Director, 10-28-16; 2005 RLDC § 61.060.]

19.72 HEIGHT, SETBACKS AND ACCESSORY STRUCTURES, of the Josephine County Code (JCC), is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

19.72.060 Accessory structure standards

* * *

~~D. Lighting. No indoor lighting used in or by an indoor marijuana growing area, or indoor marijuana processing facility, shall be visible from dwellings on adjacent properties, nor cast light onto adjacent properties nor upward into the night sky, between dusk and dawn. [Ord. 2017-001 § 1(3); 2005 RLDC § 72.060.]~~

* * *

19.73 FENCES, WALLS, AND SCREENS, of the Josephine County Code (JCC), is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

19.73.030 Permitted fences, walls and hedges

* * *

C. Composition.

1. Permanent or temporary sight-obscuring fences shall not be constructed of temporary or portable materials such as, but not limited to, root balls, hay bales, junk, appliances, inoperable vehicles or equipment, plastic sheeting, or tarps.

2. ~~If a vegetative screen is allowed by state law and this title, the vegetative screening shall be planted so that when fully grown the canopy is retained solely on the lot with the marijuana production area. The vegetative screening, when mature, must be capable of screening mature marijuana plants/crops within three years of the planting of the vegetative screen. The screen shall be maintained to provide a live vegetative screen of the height required by state law and this title.~~

3. ~~Shade cloth used for shading of plants is allowed for a temporary period not to exceed three consecutive months, and the shade cloth must be removed at the end of the growing season.~~ [Ord. 2017-001 § 1(4); amended by Planning Director, 10-28-16; 2005 RLDC § 73.030.]

19.77 LIGHTING, of the Josephine County Code (JCC), is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

~~19.77.020 Indoor lighting~~

~~No indoor lighting used in or by an indoor marijuana growing area, or indoor marijuana-processing facility, shall be visible from dwellings on adjacent properties, nor cast light onto adjacent properties nor upward into the night sky, between dusk and dawn. [Ord. 2017-001 § 1(6).]~~

Title 19 RURAL LAND DEVELOPMENT

Division IX Special Use Standards

19.99BMARIJUANA BUSINESSES

19.99B.010 Purpose and intent

The Josephine County Board of Commissioners has determined that it is in the public interest and necessary for the promotion of the safety, convenience and general welfare of the citizens of Josephine County to have an ordinance which authorizes the County to (A) require marijuana producers, processors, wholesalers, retailers, laboratories and other marijuana businesses to obtain an annual compliance certificate and inspection in order to operate a marijuana business within Josephine County; -(B) to impose reasonable regulations on all marijuana businesses within Josephine County relating to odor, security cameras, on-site lighting, and verification of a water source; (C) to establish a maximum density of marijuana businesses within Josephine County; and (D) to allow existing marijuana businesses within Josephine County to continue to operate and expand, so long as they remain in compliance with all applicable state and local regulations.

19.99B.015 Applicability

The requirements of this chapter shall apply to all new and existing marijuana business uses.

19.99B.020 Operation

A. No marijuana business may lawfully operate in the County without:

1. A marijuana compliance certificate issued by the Josephine County Community Development Department;

2. Proof of a valid license from the OLCC, OHA or other appropriate state regulatory agency; and

3. A Land Use Compatibility Statement (LUCS) stating the use is not prohibited.

19.99B.021 Marijuana Compliance Certificate

A. No new marijuana compliance certificate shall be issued unless the new business would not exceed the density standards of section 19.99B.040 or a new license is issued under 19.99B.060. Marijuana compliance certificates may be renewed regardless of density standards.

1. Marijuana businesses in operation at the time of this ordinance that already have a LUCS and license from OLCC shall have 30 days from the effective date of this ordinance to obtain a marijuana compliance certificate before they are subject to paragraph A. This timeline may be extended at the discretion of the Planning Director for good cause where progress continues to be made toward obtaining a marijuana compliance certificate.

B. Annually, each marijuana business within Josephine County shall apply for a marijuana compliance certificate from the County Community Development Department. The applicant shall apply for a marijuana compliance certificate at least 30 days after the anniversary date of the issuance of the marijuana business' license by the OLCC, OHA, or other appropriate state regulatory agency.

1. An application submitted more than thirty (30) but not more than sixty (60) days after the anniversary date of the marijuana business' license shall be assessed a late fee, as established by Josephine County.
2. An application submitted more than sixty (60) but not more than 120 days after the anniversary date of the marijuana business' license shall be assessed a more significant late fee, as established by Josephine County.
3. No marijuana compliance certificate renewal shall issue on applications submitted more than 120 days after the anniversary date of the marijuana business' license. Such applications shall be considered as a new marijuana compliance certificate application and subject to regulations for a new marijuana business.
4. The timelines prescribed above may be waived or extended at the discretion of the Planning Director for good cause.

C. Every marijuana business within Josephine County shall apply for a marijuana compliance certificate on forms provided by the County and additional information described below:

1. A copy of the state license(s) or approval(s) that authorize the marijuana business to operate in Oregon;

2. A map or sketch showing the defined boundaries of the premises and location of any buildings associated with the marijuana business, residence, all other buildings, fences, well, septic, driveways, campers, ponds or reservoirs, streams or rivers, dirt piles or berms, signs, and other improvements located on the same tax lot as the marijuana business; including but not limited to the canopy and arial maps of the premises as required by the OLCC;

3. A map showing the size and scope of the marijuana production site, including the number of plants for a medical marijuana production site, and the projected canopy size for a recreational marijuana production site; including but not limited to the canopy and arial maps of the premises as required by the OLCC;

4. If on a private road or easement, copy of a road maintenance agreement, should a recorded agreement exist;

5. Proof of legal interest in the property, and the person(s) or business whom have an interest in the lot or parcel where the marijuana business is to be located;

6. Calendar of anticipated hours of operation, including harvest season;

7. List of mechanically generated equipment which may exceed 50 dB(A);

8. Information establishing the existence of an odor control system for an indoor marijuana production site;

9. If the site is a nonconforming use, a copy of a determination of a nonconforming use; and

10. Any additional information requested from the marijuana business by the Planning Director to establish compliance with all state and local laws and regulations.

D. The final approval and issuance of a marijuana compliance certificate is subject to an on-site inspection of the marijuana business by the Building Official, or his or her designee. The inspection will be for the limited purpose of inspecting the property and related records as provided for in this chapter, and local and Oregon law. A marijuana business shall be subject to inspection by the County at any time during the marijuana compliance period. Except by mutual agreement with the marijuana business or by court order, any inspection under this section may occur only during the marijuana business' regular business hours.

E. Any marijuana business that is found to be out of compliance with any state or local law or regulation at the time of application for a marijuana compliance certificate, at any time during the marijuana compliance period, or at the time of renewal of the marijuana compliance certificate shall be informed of the nature of the violations by the Planning Director or his or her designee by certified mail. The marijuana business shall have 30 days from the date of mailing to remedy all violations. If more time is required to remedy the violations, the marijuana business, within the initial 30-day period, shall make any request for an extension of time in writing. Upon receipt of the written request, the 30-day period may be extended at the sole discretion of the Planning Director. Failure to remedy violations within the time period prescribed by these rules or by the Planning Director may result in the non-issuance or revocation of the marijuana compliance certificate.

F. If a marijuana compliance certificate is revoked or a renewal application results in non-issuance, any subsequent marijuana compliance certificate application for the same property shall be reviewed as a new application and subject to all applicable provisions.

G. The marijuana business shall immediately inform the County in writing of any proposed substantial changes submitted to the OLCC, OHA, or other state regulatory agency to the marijuana business, including, but not limited to:

1. A proposed change of ownership or possessory interest;

2. Any proposed changes involving the nature, scope, management, location, increase, or decrease in size of the marijuana business; or

3. A proposed change in the methodology by which oils are extracted or processed. [Ord. 2018-007 § 2.]

H. Revocation of Compliance Certificate or Denial of Renewal. A marijuana compliance certificate may be revoked, or a renewal application denied, by the Planning Director if the marijuana business does not have a license issued by OLCC and/or does not meet the requirements described in paragraph C, above. The procedure for revocation or denial of renewal shall be the same as for revocation of permits, JCC 19.41.040.

19.99B.030 Land Use Compatibility Statements (LUCS)

A. A marijuana business without a valid compliance certificate shall have any previously issued Land Use Compatibility Statement revoked and the Oregon Liquor and Cannabis Commission (OLCC) shall be notified. The landowner may submit a new LUCS for review, which shall be subject to review as though for a new business.

B. The Josephine County Board of Commissioners shall hear any proceedings for LUCS revocation, which may be consolidated with proceedings on an appeal of a revocation or denial of renewal of a marijuana compliance certificate.

C. Revocation Procedure. The revocation of a LUCS shall be subject to the following procedures:

1. The Community Development Department shall mail the landowner a written statement of the proposed revocation at least thirty (30) days prior to the date of revocation. The notice shall contain:

a. A detailed statement identify the specific reason(s) for revocation, including reference to specific local regulations and the authority and jurisdiction for the revocation;

b. A statement of the right to request a hearing on the LUCS revocation, with a description of the procedure for requesting a hearing;

c. A statement advising that if no request for hearing is received within 15 days from the date the notice is mailed, or if the landowner fails to attend the scheduled hearing, an order by default for the revocation of the LUCS shall be entered if a prima facie case is made on the record; and

d. A statement that revocation will take effect upon issuance of an order, and provide the date the order will issue if no hearing is requested.

2. If no hearing is requested, the order by default shall be issued and the record shall be established at that time.

3. If a hearing is requested, the procedures described in JCC 19.25.020 (Rules of procedure), JCC 19.25.030 (Public hearing and notice), and JCC 19.25.040(A)-(D) shall be followed. Procedure during the hearing shall comply with ORS 183.417(5)-(10). At the conclusion of the hearing, the Board may either (1) revoke the LUCS; or (2) continue the LUCS.

a. If the landowner fails to attend the scheduled hearing, the record shall be made at that hearing and an order by default shall be issued.

4. Order. A final order revoking or continuing a LUCS shall be accompanied by findings of fact and conclusions of law and may be accompanied by an opinion. An order shall include a statement that the order is appealable to the Land Use Board of Appeals (LUBA). The findings of fact shall consist of a concise statement of the underlying facts supporting the findings as to each contested issue of fact and as to each ultimate fact required to support the order. A copy of the final order and accompanying findings of fact and conclusions of law shall be delivered or mailed to each party or their attorney.

5. Appeal. A land use decision by the Board may be appealed to the Oregon Land Use Board of Appeals as provided by state law.

D. Notice to OLCC. The Community Development Department shall promptly provide notice to OLCC of the following:

1. Initiation of proceedings to revoke a LUCS;

2. Outcome of proceedings to revoke a LUCS, including a copy of any order and accompanying findings of fact and conclusions of law;

3. Initiation and outcome of any appeal of a decision to revoke or continue a LUCS to the Land Use Board of Appeals or any other appellate court; and

4. Initiation and outcome of any remand proceedings regarding a decision to revoke or continue a LUCS.

19.99B.040 Density Standards

A. Except as provided in section 19.99B.050, the number of marijuana businesses within Josephine County shall not exceed the following ratios:

1. One (1) marijuana production site per 7,500 County residents who are 21 years of age or older.
2. One (1) marijuana retail site per 7,500 County residents who are 21 years of age or older.

3. One (1) marijuana wholesale site per 12,500 County residents who are 21 years of age or older.
4. One (1) marijuana processing site per 12,500 County residents who are 21 years of age or older.

B. New and relocated marijuana retailer or dispensary sites shall not be established within:

1. 1,000 feet of any school, as provided in ORS 475C.097(d) and ORS 475C.833(d), daycare, or church.
2. 1,000 feet of any other marijuana retailer or dispensary site.

19.99B.050 Additional Standards for Marijuana Business Development

In addition to other applicable standards for development under this title, the following standards shall apply to marijuana businesses.

A. Odor

1. A building or structure used for the indoor production of marijuana shall be equipped with an activated carbon filtration system for odor control to ensure that air leaving the building through an exhaust vent first passes through an activated carbon filter. The filtration system shall consist of one or more fans and activated carbon filters. At a minimum, the fan(s) shall be sized for cubic feet per minute (CFM) equivalent to the volume of the building (length multiplied by width multiplied by height) divided by three. The filter(s) shall be rated for the applicable CFM.

2. The filtration system shall be maintained in working order and shall be in use during regular business hours. The filters shall be changed a minimum of once every 365 days.

3. Doors and windows shall remain closed, except for the minimum length of time needed to allow people to ingress or egress the building.

4. An alternative odor control system is permitted if the applicant submits a report by a mechanical engineer licensed in the state of Oregon demonstrating that the alternative system will control odor as well as or better than the activated carbon filtration system otherwise required. [Ord. 2018-007 § 2.]

B. Lighting

1. Light cast by light fixtures inside a building used for a marijuana business shall not be visible from dwellings on adjacent properties, nor cast light onto adjacent properties nor upward into the night sky, between the hours of 7:00 p.m. to 7:00 a.m.

2. Outdoor marijuana grow lights shall not be illuminated from 7:00 p.m. to 7:00 a.m.

3. Light cast by exterior light fixtures other than marijuana grow lights (e.g., security lights, driveway lights) shall be shielded or use a hood and lens that cast light downward so as to ensure no light is cast onto adjacent properties or upward into the night sky. If the lighting mechanism does not utilize a hood or lens, lighting fixtures shall be fully shielded in such a manner that all light emitted directly by the lamp or diffusing

element, or indirectly by reflection or refraction, is projected below the horizontal plane through the lowest light-emitting part. [Ord. 2018-007 § 2.]

C. Fences, Walls, and Screens

1. If a vegetative screen is allowed by state law and this title, the vegetative screening shall be planted so that when fully grown the canopy is retained solely on the lot with the marijuana production area. The vegetative screening, when mature, must be capable of screening mature marijuana plants/crops within three years of the planting of the vegetative screen. The screen shall be maintained to provide a live vegetative screen of the height required by state law and this title.

2. Shade cloth used for shading of plants is allowed for a temporary period not to exceed three consecutive months, and the shade cloth must be removed at the end of the growing season.

D. Security

1. If utilized, on-site security cameras shall be directed to record only the subject property and public right-of-way, except as required to comply with licensing requirements of the OLCC or registration requirements of the OHA.

2. Security personnel must be permitted marijuana workers per the state of Oregon and comply with all laws governing the provision of security services.

E. Nonconforming Marijuana Business Standards

The following standards shall apply to all nonconforming marijuana business sites, in addition to other applicable standards for development under this section and title:

1. Setbacks

   All marijuana plants shall be a minimum of 150 feet from the appurtenances of all dwellings on contiguous lots or parcels, as measured from the edge of the canopy of the marijuana plants.

2. Hours of Operation

   With the exception of residents, guests, and employees who serve to guard a marijuana production site, regular business hours shall be:

   a. From 7:00 a.m. to 7:00 p.m., beginning on November 11 and ending on September 19 annually.
   b. From 5:00 a.m. to 9:00 p.m. , beginning on September 20th and ending on November 10th annually.

3. Mechanically Generated Noise

   Mechanically generated noise shall not exceed 50 dB(A), measured at the property lines of the marijuana business site, during business hours.

4. Expansion, Alteration or Transfer. A nonconforming marijuana business site may:
   a. Expand and/or be altered on the same property, as approved by OLCC;

b. Be transferred to a new owner of the same property, as approved by OLCC; and/or

c. Be transferred to another property, if the new site meets zoning requirements.

19.99B.060 Current Licensees at the time of ordinance passage

Businesses already legally operating at the passage of this ordinance will be granted the same rights and responsibilities as current OLCC licensees, including the ability to expand in alignment with any future OLCC changes.

A. LUCS Issuance standards
   1. Changes of Ownership
   2. Change of location
   3. Amendment to an existing OLCC license

B. LUCS Application Requirements
   Applicants must include an active OLCC license number, based in Josephine County, in the "details for proposed use" section of the OLCC LUCS form.

C. Marijuana Compliance Certificate Requirements
   Must be applied for with newly issued license number.

* * *

Section 2.00 CODIFICATION

These amendments shall be codified in JCC Title 19.

Section 3.00 AFFIRMATION

Except as specifically amended by the provisions of this ordinance, the Josephine County Code, as previously adopted and amended, is hereby affirmed.

Section 4.00 EFFECTIVE DATE

First reading by the Board of County Commissioners this 23 day of October, 2025.

Second reading and adoption by the Board of County Commissioners at least thirteen (13) days from the first reading, this 13 day of November, 2025. This ordinance shall take effect ninety (90) days after its adoption by the Board of County Commissioners.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

Andreas Blech, Chair

Chris Barnett, Vice Chair

Ron Smith, Commissioner

APPROVED AS TO FORM:

M. Wally Hicks, Legal Counsel

BEFORE THE BOARD OF COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON

In the Matter of Uniform Procedure for Setting Fees Charged)
by County: Community Development (Planning) – Various Fees) **Order No. 2026-019**

WHEREAS, at the May 16, 2000 election, the voters of Josephine County approved County Measure 17.73 (Board of County Commissioners Order No. 2000-25 dated March 13, 2000) establishing a uniform procedure for setting fees charged by Josephine County in compliance with the Josephine County Charter; and

WHEREAS, the Board of Commissioners set a time and place for a hearing to allow public comment prior to adopting fee schedules for certain County programs; and

WHEREAS, following due and proper notice, the Board of Commissioners, having heard this matter at 9:00 a.m. on Wednesday, April 1, 2026 at a public hearing on the proposed fees does make the following FINDINGS:

(1) The proposed fees, as set out in the Exhibits attached hereto, for the following County programs: Community Development (Planning) are consistent with the intent of the measure establishing a uniform procedure for setting fees charged by the County; the provision of the services will be borne by the users of the services and not by the taxpayers and general fund of Josephine County; and

(2) The cost of the proposed fees is calculated to cover the cost of providing the services and administration of the programs directly related to the proposed fees.

NOW, THEREFORE, IT IS HEREBY ORDERED as follows:

1) The Board of Commissioners declares its approval of the fee schedules, as set out in the Exhibits attached hereto, for the following County programs:

- Community Development (Planning)

2) The fees established hereunder shall be effective May 1, 2026.

DONE AND DATED this 1st day of April 2026

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice-Chair

_____
Gary Richardson, Commissioner

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON

In the Matter of the Transfer of	)	
County Real Property to the	)	ORDER No. 2026-xxx
City of Cave Junction, Oregon	)	

WHEREAS, Josephine County is the fee owner of certain real properties and improvements, acquired by the County by foreclosure of delinquent tax liens, or otherwise, in which property is located at 250 E. Hanby Lane, Cave Junction, Josephine County, Oregon, described as follows:

Lot 12, COTTAGE BUSINESS PARK, Josephine County, Oregon, according to the Official Plat thereof, recorded in Volume 9, Page 324, Plat records.

WHEREAS, it has been discovered that the real property is a detention pond for a nearby development located in the City of Cave Junction.

WHEREAS, ORS 271.330(1) authorizes the County to relinquish title to its real property to another governmental body to be used to public purposes; and

WHEREAS, the Board of Commissioners has determined that it is in the best interest of the public to transfer ownership of the property to the City of Cave Junction, without consideration, provided that said properties shall be used and continue to be used, for a public purpose;

NOW THEREFORE, IT IS HEREBY ORDERED that the real property described in Exhibit A, attached hereto, be conveyed and transferred to the City of Cave Junction, said property to be used for a public purpose, pursuant to ORS 271.330(1).

IT IS FURTHER ORDERED that the Board of Commissioners shall execute all documents necessary to accomplish the transfer.

DONE and DATED this ____ day of March 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice-Chair

_____
Gary Richardson, Commissioner

DRAFT

Josephine County 500 NW 6th Street Grants Pass, Oregon 97526 Grantor's Name and Address After recording return document and send tax statements to: City of Cave Junction, Oregon P.O. Box 1396 Cave Junction, OR 97523	

QUITCLAIM DEED

JOSEPHINE COUNTY, a political subdivision of the State of Oregon, Grantor, releases and quitclaims to **CITY OF CAVE JUNCTION, OREGON**, a municipal corporation, Grantee, all right, title, and interest in and to the following described real property:

> Lot 12, COTTAGE BUSINESS PARK, Josephine County, Oregon, according to the Official Plat thereof, recorded in Volume 9, Page 324, Plat records

ON CONDITION that Grantee, CITY OF CAVE JUNCTION, OREGON, uses the above-described property for public use and accepts the restrictions and limitations of ORS 271.330.

TO HAVE AND TO HOLD the same, together with all and singular the hereditaments and appurtenances thereunto belonging or in anywise appertaining thereto to CITY OF CAVE JUNCTION, OREGON.

The true consideration for this transfer, stated in terms of dollars, is $0, and includes sufficient value given or promised.

The Order of the Josephine County Board of Commissioners authorizing this transfer pursuant to ORS 271.330 is instrument number 2026-xxx, dated _____, 2026, and recorded in the Journal of proceedings of said Board of Commissioners.

THIS INSTRUMENT WILL NOT ALLOW USE OF THE PROPERTY DESCRIBED IN THIS INSTRUMENT IN VIOLATION OF APPLICABLE LAND USE LAWS AND REGULATIONS. BEFORE SIGNING OR ACCEPTING THIS INSTRUMENT, THE PERSON ACQUIRING FEE TITLE TO THE PROPERTY SHOULD CHECK WITH THE APPROPRIATE CITY OR COUNTY PLANNING DEPARTMENT TO VERIFY APPROVED USES AND TO DETERMINE ANY LIMITS ON LAWSUITS AGAINST FARMING OR FOREST PRACTICES AS DEFINED IN ORS 30.930.

In Witness Whereof, Grantor has executed this instrument this ____ day of _____, 2026.

STATE OF OREGON)
) ss.
County of Josephine)

This instrument was acknowledged before me on this ___ day of _____ 2026, by _____
_____
as members of the Josephine County Board of Commissioners.

_____
Notary Public for Oregon
My commission expires: _____

GRANTOR:
JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice Chair

_____
Gary Richardson, Commissioner

DRAFT

APPROVED AND ACCEPTED:
CITY OF CAVE JUNCTION, OREGON

_____
By: Jesse Dugas, Mayor

Item 4c

BEFORE THE BOARD OF COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON

In the Matter of Adopting a Supplemental Budget and Making Appropriations and Budget Adjustments for the Fiscal Year 2025-26

Resolution No. 2026-004

WHEREAS, Josephine County is required to supplement the budget for the 2025-26 fiscal year in order to recognize both additional revenues and expenditures, and
WHEREAS, pursuant to ORS 294.471 (3), following due and proper notice, the Board of County Commissioners may adopt a supplemental budget at a regular meeting, and
WHEREAS, the Board of County Commissioners adopted a budget for the fiscal year 2025-26 on June 18, 2025, and
WHEREAS, conditions have changed since the adoption of the 2025-26 fiscal year budget, and
WHEREAS, the Board of County Commissioners as the governing body of Josephine County may, in accordance with Oregon Revised Statute 294.463 (1), (2), and (3), approve a transfer of an existing appropriation, and
WHEREAS, the Board of County Commissioners as the governing body of Josephine County may, in accordance with Oregon Revised Statute 294.338 (3), appropriate by resolution, unanticipated revenues and expenditures, and
WHEREAS, the Board of County Commissioners as the governing body of Josephine County may, in accordance with Oregon Revised Statute 294.456 (6), adjust budgeted resources and reduce expenditures to reflect a decrease in resources,

NOW, THEREFORE, BE IT HEREBY RESOLVED that the Josephine County Board of County Commissioners hereby adopts the supplemental budget summarized below and makes the appropriations shown in the summary; and that the Finance Director is authorized to make the budget adjustments to the 2025-26 budget as summarized below.

SUMMARY OF SUPPLEMENTAL BUDGET FY 2026

FUND: **General Fund (10)**

Resource	**Amount**	**Expenditures**	**Amount**
Interfund Transfer In	$432,900	Emergency Management	$724,100
		Community Development - Planning	$694,600
		Contingency	$1,054,300
		Reserved for Future Expenditure	$9,127,900
Revised Total Resources	$17,491,400	**Revised Total** Requirements	$17,491,400
FTE	40.63	**FTE**	43.63

Comments:

Interfund Transfer In of $90K from Fund 16 Title III for staffing support (up to 1.0 FTE) to carryout the OSFM CWRR grant to provide financial assistance to homeowners to creat defensible space. The OSFM CWRR grant was received in FY 2022-23 and the remaining $240K is being appropriated from Reserved for Future Expenditure. Planning requests 2.0 FTE to address the backlog in the department as well as the new Marijuana Annual Compliance Program. The use of contingency for these two positions is $50K for the remainder of the fiscal year. Fees for the new compliance program will offset some of the General Fund need once adopted.

FUND: **Grant Projects Fund (16)**

Resource	**Amount**	**Expenditures**	**Amount**
		Interfund Transfers Out	$620,800
		Contingency	$238,500
Revised Total Resources	$2,239,700	**Revised Total** Requirements	$2,239,700

Comments:

Contingency use of $90K in Title III Funds to transfer to Fund 10 General Fund for staffing support (up to 1.0 FTE) to carryout the OSFM CWRR grant to provide financial assistance to homeowners to creat defensible space.

FUND: **County Facilities and Fleet Fund (41)**

Resource	**Amount**	**Expenditures**	**Amount**
		Facilities Services	$3,556,500
		Contingency	$424,400
Revised Total Resources	$6,308,500	**Revised Total** Requirements	$6,308,500
FTE	22.80	**FTE**	23.80

Comments:

Addition of 1.0 FTE for Communications System Assistant to be the backup for the only technician responsible for maintenance and repair of critical radio equipment. Contingency use of $20K for the cost of the position for remainder of the fiscal year.

FUND: **Insurance Reserve Fund (42)**

Resource	**Amount**	**Expenditures**	**Amount**
		Insurance	$1,844,700
		Contingency	$383,000
Revised Total Resources	$2,277,700	**Revised Total** Requirements	$2,277,700

Comments:
Contingecy use of $160K to cover the cost of a prior year workers comp claim.

DONE AND DATED this 25th day of March, 2026

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

Ron Smith, Chair

Colene Martin, Vice-Chair

Gary Richardson, Commissioner